

SENATE No. 2292

The Commonwealth of Massachusetts

PRESENTED BY:

Patricia D. Jehlen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to further empower local climate action.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>3/10/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>5/28/2025</i>

SENATE No. 2292

By Ms. Jehlen, a petition (accompanied by bill, Senate, No. 2292) of Patricia D. Jehlen and James B. Eldridge for legislation to update applications for zoning ordinances that require new building construction or major renovation projects to be fossil fuel-free. Telecommunications, Utilities and Energy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to further empower local climate action.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 84 of chapter 179 of the acts of 2022 is hereby amended in
2 subsection (c) by striking out, in the first and seventh instance, the figure “10” and inserting in
3 place thereof in each instance the following figure:- 20.

4 SECTION 2. Said subsection (c) is hereby further amended by striking the second
5 sentence and inserting in place thereof the following new text:-

6 No city or town shall apply for acceptance into the demonstration project until it has
7 received local approval as defined in subsection (a) of Section 84 of this act or has submitted a
8 home rule petition to the general court on the subject matter of this section; provided, that the
9 department shall issue approvals under this section to not more than 20 applications in the order
10 in which cities and towns have submitted or submit applications; provided further, that the
11 department shall, in the interest of increasing housing production in the commonwealth, withhold

approval of an application by a city or town applying to participate in the demonstration project until such time as said city or town has: (i) met the 10 per cent housing affordability threshold set under chapter 40B of the General Laws or has been granted safe harbor status through an approved Housing Production Plan by the department of housing and community development; or (ii) has approved a zoning ordinance or by-law that provides for at least 1 district of reasonable size in which multi-family housing is permitted as of right; provided, that such multi-family housing shall be without age restrictions and shall be suitable for families with children; provided further, that a city or town that met the 10 per cent affordability threshold as of December 21, 2020, shall be deemed to have satisfied the requirements of this paragraph.

SECTION 3. Said subsection (c) is hereby further amended by striking out, in the last sentence, the following words:- “of home rule petitions to the general court”.

SECTION 4. The department of energy resources, in consultation with the executive office of energy and environmental affairs and the executive office of housing and economic development, may promulgate regulations to implement this section. Said regulations shall be promulgated no later than July 1, 2026.